# Ordinance No. 8119

AN ORDINANCE ADOPTING THE MANILA COMPREHENSIVE LAND USE PLAN AND ZONING REGULATIONS OF 2006 AND PROVIDING FOR THE ADMINISTRATION, ENFORCEMENT AND AMENDMENT THERETO.

## PREAMBLE

WHEREAS, the implementation of Comprehensive Land Use Plans requires the enactment of regulatory measures to realize the planning, vision, goals and objectives of the City of Manila;

WHEREAS, while there is the Metro Manila Commission 81-01, entitled: "Comprehensive Zoning Ordinance for National Capital Region", the same does not conform with the development goals formulated in the Comprehensive Land Use Plan and is no longer responsive to the present needs of the City of Manila;

WHEREAS, the Local Government Code (R.A. 7160) of 1991, authorizes Local Government Units to enact Zoning Ordinances subject to and in accordance with existing laws: NOW, THEREFORE,

Be it ordained by the City Council of Manila, THAT:

## ARTICLE I
## TITLE

SECTION 1. Title of the Ordinance. - This Ordinance shall be known as the Manila Comprehensive Land Use Plan and Zoning Ordinance of 2006 and shall hereinafter be referred to as the "Ordinance", for brevity.

## ARTICLE II
## AUTHORITY AND PURPOSE

SEC. 2. Authority. - This Ordinance is enacted pursuant to the provisions of RA 7160 otherwise known as the Local Government Code of 1991, particularly sub-paragraphs vii to x, Paragraph 2 Sections 458 thereof "Authorizing the City through the Sangguniang Panglunsod to adopt Zoning Ordinance subject to the provisions of existing laws", and in conformity with E.O. No. 72.

SEC. 3. Purposes. – This Ordinance is enacted for the following purposes:

1. Guide, control and regulate future growth and development in accordance with its Land Use and Structure Plans.

2. Protect the character and stability of residential, commercial, industrial, institutional, urban, open spaces and other functional areas within the locality and promote the orderly and beneficial development of the same.

3. Promote and protect public health, safety, peace, morals, comfort, convenience and general welfare of the inhabitants of the City.

4. Create new opportunities for growth and change in order to improve the quality of life and the economic well being of the City.

5. Provide the proper regulatory environment to maximize opportunities for creativity, innovation and make ample room for development within the framework of the City's over-all goals and objectives.

SEC. 4. General Zoning Principle. – This Zoning Regulation is based on the approved Manila Comprehensive Land Use Plan as adopted in this Ordinance.

## ARTICLE III
## DEFINITION OF TERMS

SEC. 5. Definition of Terms. - The definition of technical terms used in the Zoning Ordinance shall carry the same meaning given to them in already approved codes and regulations, such as but not limited to the National Building Code, Water Code, Philippine Environmental Code, Urban Development and Housing Act (UDHA) and other Implementing Rules and Regulations, promulgated by the Housing and Land Use Regulatory Board (HLURB). The words, terms and phrases used in this ordinance are hereby defined in Annex "A" of this Ordinance which is attached herewith and made an integral part hereof and they shall be construed as being covered by such terms.

SEC. 6. Construction and Interpretation of Terms. – The words and terms employed in this ordinance shall be interpreted and understood liberally in the generic sense unless otherwise indicated and shall as far as practicable be construed in favor of applicants seeking to comply with the provisions hereof. The listing of uses shall unless, otherwise indicated, be similarly construed. In addition, the following rules shall be observed:

a. generic terms, such as others and the like, etc. shall be construed to mean as including all specific terms similar to or compatible with those enumerated;

b. the singular includes the plural, subject to intensity regulations;

c. the present tense includes the future tense;

d. the word "person" includes both the natural and juridical persons;

e. the word "lot" includes the phrase plot or parcel;

f. the term "shall" is always mandatory; and

g. the word "used" or occupied as applied to any land or building shall be construed to include the words "intended", "arranged", designed to be "used or occupied".

## ARTICLE IV
## ZONE CLASSIFICATION

SEC. 7. Division into Zones or Districts. - To effectively carry out the provisions of this Ordinance, the City of Manila is hereby divided into the following zones or districts as shown in the Official Zoning Maps.

A. General Residential Zone:

1. High Density Residential/Mixed Use Zone (R-3/MXD)

B. Commercial Zones:

2. Medium Intensity Commercial/Mixed Use Zone (C-2/MXD)
3. High Intensity Commercial/Mixed Use Zone (C-3/MXD)

C. Industrial Zone:

4. Light Industrial Zone (I-1)

D. Institutional Zones:

5. General Institutional Zone (INS-G)
6. University Cluster Zone (INS-U)

E. Public Open Space Zones:

7. General Public Open Space Zone (POS-GEN)
   7.a Parks and Plazas (POS-PP)
   7.b Playground and Sports Field/Recreation Zone (POS-PSR)
8. Cemetery Zone (POS-CEM)

F. Others
9. Utility Zone (UTL)
10. Water Zone (WTR)
11. Overlay Zones:
    11.1 Histo-Cultural Heritage Overlay Zone (O-HCH)
    11.2 Planned Unit Development Overlay Zone (O-PUD)
    11.3 Buffer Overlay Zone (O-BUF)

SEC. 8. Zoning Map. – The Official Map shall show and indicate the designation, location and boundaries of the zones herein established. Such Official Zoning Map shall be signed by the Mayor and duly authenticated by the Sangguniang Panlungsod and shall be attached hereto at Annex “B” and made an integral part of this Ordinance.

SEC. 9. Zone Boundaries. - The locations and boundaries of the above-mentioned zones are hereby defined in the List of Zone Boundaries, which is herewith attached as Annex “C” and made an integral part of this Ordinance.

SEC. 10. Interpretation of the Zone Boundaries. - In the interpretation of boundaries for any of the zones indicated on the Zoning Map, the following rules shall apply:

1. Where zone boundaries are so indicated that they approximately follow the center of streets or highways, the street or highway right-of-way lines shall be construed to be the boundaries.

2. Where zone boundaries are so indicated that they approximately follow the lot lines, such lot lines shall be construed to be the boundaries.

3. Where zone boundaries are so indicated that they are approximately parallel to the center lines or right-of-way lines of streets and highways, such zone boundaries shall be construed as being parallel thereto and at such distance therefrom as indicated in the zoning map. If no distance is given, such dimension shall be determined by the use of the scale shown in said zoning map.

4. Where the boundary of a zone follows approximately a railroad line, such boundary shall be deemed to be located three (3) meters from the outer edge of the outer track of said railroad line. (the railroad right of way)

5. Where the boundary of a zone follows a stream, lake or other bodies of water, said boundary line shall be deemed to be at the limit of the political jurisdiction of the community unless otherwise indicated. Boundaries indicated as following shorelines, shall be construed to follow such shorelines and in the event of change in shorelines, shall be construed as moving with the actual shorelines.

6. Where a lot of one ownership, as of record at the effective date of this zoning ordinance, is divided by a district boundary line, the lot shall be construed to be within the district where the major portion of the lot is located. In case the lot is bisected by the boundary line, it shall fall on the district where the principal use falls.

7. Where zone boundary line is indicated as one-lot-deep, said depth shall be construed to be the average lot depth of the lots involved within each particular city block. Where, however, any lot with a depth greater than said average, the remaining portion of said lot shall be construed as covered by the one-lot-deep zoning district provided the remaining portion has an area less than fifty percent (50%) of the total area of the entire lot. If the remaining portion has an area equivalent to fifty percent (50%) or more of the total area of the lot then the average lot depth shall apply to the lot which shall become a lot divided and covered by two or more different zoning districts, as the case may be.

   In case of any remaining doubt as to the location of any property along zone boundary lines, such property shall be considered as falling within the less restrictive zone.

8. Boundaries indicated as parallel to or are extension of features not specifically indicated in the zoning boundaries, shall be determined by the zoning map drawn to the scale of 1:10,000 meters.

9. Where the zone boundaries are inaccurate or have discrepancies as to the indication on a zoning map of a scale of 1:10,000 meters, the description of the zoning boundaries appended shall govern.

## ARTICLE V
## ZONE REGULATIONS

SEC. 11. General Provision. The uses enumerated in the succeeding sections are neither exhaustive nor all-inclusive. The Sangguniang Panlungsod (SP) as per recommendation from the Manila Zoning Board of Adjustment and Appeals (MZBAA) through the Committee on Housing, Urban Development and Resettlements shall, subject to the requirements of this Ordinance, and the Implementing Rules and Regulations (IRR) of this Zoning Ordinance as attached herewith and made an integral part hereof, allow other uses not enumerated hereunder provided that they are compatible with the uses expressly allowed.

Allowance of further uses shall be based on the intrinsic qualities of the land and the socio-economic potential of the locality with due regard to the maintenance of the essential qualities of the zone.

Specific uses/activities of lesser density within a particular zone (C-2/MXD) may be allowed within the zone of higher density (C-3/MXD) but not vice versa, nor in another zone and its subdivisions (e.g. I-1,I-2), except for uses expressly allowed in said zones, such that the cumulative effect of zoning shall be intra-zonal and not inter-zonal.

Developments of Mixed-Use character (R3/MXD, C2/MXD) shall have a 70/30 sharing of uses. Where 70% of the development must be of the principal use (e.g. R3/MXD – the principal use is residential) and the other 30% can be of any of the allowed uses within the zone category.

SEC. 12. Use Regulations in High Density Residential/Mixed Use Zone (R-3/MXD). An R-3/MXD shall be used primarily for high-density high-rise housing/dwelling purposes and limited complementary/supplementary trade, services and business activities. Enumerated below are the allowable uses:

1. Detached family dwelling
2. Semi-detached family dwelling e.g. duplex, rowhouse
3. Multi-family dwelling
4. Commercial housing
   e.g. hotel, apartment, apartelle, boarding house, dormitory, pension house, club house, motel, residential inn/condotel/condominium
5. Branch library, art gallery, exhibit area and museum
6. Pre-school/elementary school, high school, vocational school
7. Home occupation for the practice of one's profession or for engaging an in-house business such as dressmaking, tailoring, baking, running a sari-sari store, provided that:

   a. The number of persons engaged in such business/industry shall not exceed five (5), inclusive of the owner;
   b. There shall be no change in the outside appearance of the building or premises;
   c. No home occupation shall be conducted in any customary accessory uses cited above;
   d . No traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street and in a place other than in a required front yard;
   e. No equipment or process shall be used in such home occupation which creates noise, vibration, glare, fumes, odor, or electrical interference detectable to the normal senses and visual or audible interference in any radio television receivers or causes fluctuation in line voltage of the premises.

8. Home industry classified as cottage industry provided that:

   a. Such home industry shall not occupy more than thirty percent (30%) of the floor area of the dwelling unit in order to maintain its residential use. There shall be no change or alteration in the outside appearance of the dwelling unit and shall not be a hazard/nuisance;
   b. Allotted capitalization shall not exceed the capitalization as set by the Department of Trade and Industry (DTI); (above 150,000 – 1.5 M)
   c. Shall consider same provisions as enumerated in letters c, d and e of Home Occupation of this section.

9. Multi-purpose/Barangay Hall
10. Nursing and convalescing
11. Plant nursery
12. Welfare/charitable institution
13. Public utility facility
14. Fire and security station
15. Office
16. General retail store (not shopping center)
    e.g. bookstore and office supply shop, car shop, home appliance store, photo shop, flower shop
17. Food markets and shops
    e.g. bakery, bake shop, wine store, grocery, supermarket
18. Personal services shops
    e.g. beauty parlor, barber shop, sauna bath and massage clinic, dressmaking and tailoring shops
19. Parks, garden, playgrounds, sports-related/recreational center/establishments
    e.g. moviehouse/theater, playcourt, swimming pool, stadium, coliseum, gymnasium, entertainment/amusement center, billiards

20. Restaurant, canteen or food-serving establishment, provided that except in hotels, such restaurant, canteen, or food-serving establishment is not located on the ground or basement floor
21. Short-term special education/training (e.g. dancing schools, schools for self defense, driving schools, speech clinics, computer/internet centers)
22. Storeroom (but only as may be necessary for the efficient conduct of the business)
23. Embassy/consulate
24. Filling station/service station
25. Convention center and related facilities
26. Messengerial service
27. Janitorial service
28. Security agency
29. Bank, finance, insurance, money exchange service and other financial institutions
30. Radio and television station, media service
31. Building garage/parking building
32. Commercial and job printing
33. Computer/information technology-related activity/service
34. Typing and photo engraving services
35. Repair of optical instruments and equipment and cameras
36. Repair of clocks and watches
37. Manufacture of insignia, badges and similar emblems except metal
38. Transportation terminal/garage e.g. parking structure, loading and unloading facilities
39. Scientific, cultural and academic centers and research facilities except nuclear, radio active, chemical and biological warfare facilities
40. Place of religious worship/use
41. Accessory uses such as:

    a. health center/clinic/day care center
    b. club house/gym/sports/recreation facility
    c. utility installation for use of zone/lot occupants
    d. guardhouse
    e. showroom/display
    f. office/school support service
    g. servants quarters
    h. parking lot/garage facilities

Service Area: Barangay to Zone-wide

The following is the Land Use Intensity Control ratings that shall be observed in the R-3/MXD Zone:

| LAND USE | Maximum PLO | Maximum FAR |
|---|---|---|
| Residential/Mixed Use<br>High Density Residential/Mixed Use R3MXD | 0.6 | 4 |

PLO – Percentage of Land Occupancy
FAR – Floor Area Ratio

SEC. 13. Use Regulations in Medium Intensity Commercial/Mixed Use Zone (C-2/MXD). A C-2/MXD Zone shall be used primarily for medium intensity mixed use and commercial developments for quasi-trade, business activities and service industries. Enumerated below are the allowable uses:

1. All allowable uses in R-3/MXD Zone provided that in case of a residential building it shall have commercial footprints
2. Transportation terminals/garage with and without repair
3. Repair shops e.g. house appliance repair shops, motor vehicles and accessory repair shops, home furnishing shops
4. Printing/Publishing
5. Machinery display shop/center
6. Gravel and Sand
7. Lumber/hardware
8. Manufacture of ice, ice blocks, cubes, tubes, crush except dry ice
9. Manufacture of signs and advertising displays (except printed)
10. Chicharon factory
11. Welding shops
12. Machine shop service operation (repairing/rebuilding, or custom job orders)
13. Medium scale junk shop
14. Lechon or whole pig roasting
15. Biscuit factory – manufacture of biscuits, cookies, crackers and other similar dried bakery products
16. Doughnut and hopia factory
17. Other bakery products and those not elsewhere classified
18. Repacking of food products e.g. fruits, vegetables, sugar and other related products
19. Funeral Parlors, mortuaries and crematory services and memorial chapels
20. Carpark buildings, parking lots, garage facilities
21. Government facility
22. Cultural/educational center
23. General/Specialized hospital, medical center
24. Shopping center/department store
25. Day & night club, disco/dance hall, videoke/karaoke bar

Service Area: District to City wide

The following is the Land Use Intensity Control ratings that shall be observed in the C-2/MXD Zone:

| LAND USE | Maximum PLO | Maximum FAR |
|---|---|---|
| Commercial/Mixed Use<br>Medium Intensity Commercial/Mixed Use<br>C2/MXD | 0.8 | 6 |

PLO – Percentage of Land Occupancy
FAR – Floor Area Ratio

SEC. 14. Use Regulations in High Intensity Commercial/Mixed Use Zone (C-3/MXD). A C-3/MXD Zone shall be used primarily for high intensity mixed use and commercial developments for trade, business activities and service industries. The service area covers a metropolitan to national scale of operations. Enumerated below are the allowable uses:

1. All uses in C-2/MXD Zone provided that in case of a residential building it shall have commercial footprints
2. Manufacture of wood furniture including upholstered
3. Manufacture of rattan furniture including upholstered

4. Manufacture of box beds and mattresses
5. Small-scale commercial warehousing activity
6. Large-scale commercial warehousing activity (strictly located at District I)
7. Other commercial activities and those not elsewhere classified

Service Area: Metropolis to Nation wide

The following is the Land Use Intensity Control ratings that shall be observed in the C-3/MXD Zone:

| LAND USE | Maximum PLO | Maximum FAR |
|---|---|---|
| Commercial/Mixed Use<br>High Intensity Commercial/Mixed Use C3/MXD | 0.8 | 7 |

PLO – Percentage of Land Occupancy
FAR – Floor Area Ratio

SEC. 15. Use Regulations in Light Industrial Zone (I-1). An I-1 zone shall be used for non-pollutive/non-hazardous and non-pollutive/hazardous manufacturing/ processing establishments. Enumerated below are the allowable uses:

Non-Pollutive/Non-Hazardous Industries

1. Drying fish
2. Biscuit Factory – manufacture of biscuits, cookies, crackers and other similar dried bakery products
3. Doughnut and hopia factory
4. Manufacture of macaroni, spaghetti and vermicelli and other noodles
5. Other bakery products and those not elsewhere classified (n.e.c.)
6. Life belts factory
7. Manufacture of luggage, handbags, wallets and small leather goods
8. Manufacture of miscellaneous products of leather, leather substitute and those n.e.c.
9. Manufacture of shoes except rubber, plastic and wood
10. Manufacture of slipper and sandal except rubber and plastic
11. Manufacture of footwear parts except rubber and plastic
12. Printing, publishing and allied industries and those n.e.c.
13. Manufacture or assembly of typewriters, cash registers, weighing, duplicating and accounting machines
14. Manufacture or assembly of electronic data processing machinery and accessories
15. Renovation and repair of office machinery
16. Manufacture or assembly of miscellaneous office machines and those n.e.c.
17. Manufacture of rowboats, bancas, sailboats
18. Manufacture of animal drawn vehicles
19. Manufacture of children vehicles and baby carriages
20. Manufacture of laboratory and scientific instruments, barometers, chemical balance, etc.
21. Manufacture of measuring and controlling equipment, plumb bomb, rain gauge, taxi meter, thermometer, etc.
22. Manufacture or assembly of surgical, medical, dental equipment and medical furniture
23. Quick freezing and cold packaging for fish and other seafood
24. Quick freezing and cold packaging for fruits and vegetables
25. Popcorn/rice factory
26. Manufacture of medical/surgical supplies: adhesive tapes, antiseptic dressing, sanitary napkins, surgical gauge, etc.
27. Manufacture of orthopedic and prosthetic appliances (abdominal supporter, ankle supports, arch support, artificial limb, kneecap supporters, etc.)

28. Manufacture of photographic equipment and accessories
29. Manufacture or assembly of optical instruments
30. Manufacture of eyeglasses and spectacles
31. Manufacture of optical lenses
32. Manufacture of watches and clocks
33. Manufacture of pianos
34. Manufacture of string instruments
35. Manufacture of wind and percussion instruments
36. Manufacture or assembly of electronic organs
37. Manufacture of sporting gloves and mitts
38. Manufacture of sporting balls (not of rubber or plastic)
39. Manufacture of gym and playground equipment
40. Manufacture of sporting tables (billiards, ping-pong, pool)
41. Manufacture of other sporting and athletic goods, and those n.e.c.
42. Manufacture of toys and dolls except rubber and mold plastics
43. Manufacture of pens, pencils and other office and artist materials
44. Manufacture of umbrellas and canes
45. Manufacture of buttons except plastic
46. Manufacture of brooms, brushes and fans
47. Manufacture of needles, pens, fasteners and zippers
48. Manufacture of insignia, badges and similar emblems (except metal)
49. Manufacture of signs and advertising displays (except printed)
50. Small-scale manufacture of ice cream

b. Non-Pollutive/Hazardous Industries

1. Manufacture of house furnishing
2. Textile bag factories
3. Canvas bags and other canvas products factory
4. Jute bag factory
5. Manufacture of miscellaneous textile goods, embroideries and weaving apparel
6. Manufacture of fiber batting, padding and upholstery filling except coir
7. Men’s and boy’s garment factory
8. Women’s and girl’s and ladies’ garment factory
9. Manufacture of hats, gloves, handkerchief, neckwear and related clothing accessories
10. Manufacture of raincoats and waterproof outer garments except jackets
11. Manufacture of miscellaneous wearing apparel except footwear and those n.e.c.
12. Manufacture of miscellaneous fabricated mill work and those n.e.c.
13. Manufacture of wooden and can containers
14. Sawali, nipa and split cane factory
15. Manufacture of bamboo, rattan and other cane baskets and wares
16. Manufacture of cork products
17. Manufacture of wooden shoes, shoe lace and other similar products
18. Manufacture of miscellaneous wood products and those n.e.c.
19. Manufacture of miscellaneous furniture and fixture except primarily of metals and those n.e.c.
20. Manufacture of paper stationery, envelopes and related articles
21. Manufacture of dry ice
22. Repacking of industrial products e.g. paints, varnishes and other related products.

c. Large-scale warehousing activity shall be confined within the light intensity industrial zone

d. Private-initiated Residential Projects for industrial components

e. Accessory Uses:

1. clinic/health center/club, gym
2. canteen/food serving establishment
3. place of religious worship
4. library, museum, exhibit area, art gallery
5. multi-purpose hall/room
6. retail store (outlet store-type
7. utility installation for zone/lot occupants
8. sports/recreation facility
9. transportation terminal/garage e.g. parking structure, waiting shed
10. guardhouse
11. showroom/display

SEC. 16. Use Regulations in General Institutional Zone (INS-G). An INS-G Zone is primarily used for government, religious, cultural, educational, medical, civic, residential and supporting commercial and service uses. Enumerated below are the allowable uses:

1. Parks, gardens, playgrounds, sports-related/recreational center/establishments e.g. moviehouse/theater, playcourt, swimming pool, stadium/gymnasium
2. Zoological Parks and other nature centers
3. Government center to house national, regional or local offices in the area
4. Pre-school/elementary school, high school, colleges, universities, professional business schools, vocational and technical schools and other institutions of higher learning
5. General hospitals, medical centers, multi-purpose clinics
6. Scientific, cultural and academic centers and research facilities except nuclear, radioactive, chemical and biological warfare facilities
7. Convention centers and related facilities
8. Auditorium, theater, performance/civic center (not commercial cinema)
9. Religious structures e.g. church, seminary, convents
10. Museums, library, exhibit area, art gallery
11. Embassies/consulate
12. Student housing e.g. dormitories, boarding house
13. Welfare homes, orphanages, boys and girls town, home for the aged and the like
14. Government housing projects
15. Rehabilitation and vocational training center for ex-convicts, drug addicts, unwed mothers, physically, mentally and emotionally handicapped, ex-sanitaria inmates and similar establishments
16. Penitentiary and correctional institution
17. Radio/TV station, media service
18. Accessory Uses:

a. office/school support service
b. parking structure
c. multi-purpose hall/room
d. club house/gym/sports/recreation facility
e. day care center/health facility (center/clinic)
f. transit station/terminal (loading and unloading facility)
g. retail store (not department store or shopping center)
h. restaurant, canteen, other food serving establishments
i. petrol filling/service stations
j. showroom/display

The following is the Land Use Intensity Control ratings that shall be observed in the INS-G Zone:

| LAND USE | Maximum PLO | Maximum FAR |
|---|---|---|
| Institutional<br>General Institutional INS-G | 0.6 | 4 |

PLO – Percentage of Land Occupancy
FAR – Floor Area Ratio

SEC. 17. Use Regulations in University Cluster Zone (INS-U). An INS-U Zone shall be used primarily for educational/academic, religious, cultural, residential developments with supporting commercial and services uses. It is often referred to as University Belts. Enumerated below are the allowable uses:

1. All uses allowed in R3/MXD Zone and INS-G
2. Colleges, universities, professional business schools, vocational and trade schools, technical schools and other institutions of higher learning
3. Computer/information technology-related activity
4. Accessory Uses:

    a. restaurants, canteen, other food serving establishment excluding karaoke bars, beer gardens, disco pubs and the like

The following is the Land Use Intensity Control ratings that shall be observed in the INS-U Zone:

| LAND USE | Maximum PLO | Maximum FAR |
|---|---|---|
| Institutional<br>University Cluster INS-U | 0.6 | 4 |

PLO – Percentage of Land Occupancy
FAR – Floor Area Ratio

SEC. 18. Use Regulations in General Public Open Space Zone (POS-GEN). A POS-GEN Zone shall be used for:

a. Parks and Plazas – where the use is primarily for diversion/amusements and for the maintenance of ecological balance of the community. No vertical structures are allowed in this zone except for structures that are integral to park and plaza. Enumerated below are the allowable uses:

1. Memorial shrines/monuments
2. Kiosks and other park structures
3. Parks/gardens, parklets and pocket parks, parkways and promenades
4. Aviary, Botanical gardens, Zoological parks and other nature centers, with customary park structures such as park office, gazebo, clubhouse
5. Arboretum
6. Underground parking structures/facilities
7. Clubhouse/Multi-purpose hall/room
8. Accessory uses:

a. Fire/security station
b. Place of religious worship/use
c. Health facilities/clinic/day care centers
d. Utility installation for use of zone/lot occupants
e. Branch library, museum, exhibit area, art gallery
f. Transportation terminal/station (loading and unloading)

b. Playground and Sports Field/Recreation Zone (POS-PSR).– where the use is primarily for outdoor active and passive recreation. Enumerated below are the allowable uses:

1. Resort areas e.g. swimming pool, including accessory uses
2. Open air or outdoor sports activities and support facilities, including low rise stadiums, gyms and amphitheatres
3. Mini-golf courses, ball courts, race tracks and similar uses
4. Playground and playlots
5. General recreational parks
6. Sports Club
7. Accessory Uses:

a. retail shops e.g. Sporting goods/souvenir shop
b. auditorium, theater, performance center
c. fire/security station
d. place of religious worship/use
e. multi-purpose hall/room
f. health facilities/clinic/day care center
g. utility installation for use of zone/lot occupants
h. branch library, museum, exhibit area, art gallery
i. parking lot and underground parking
j. transportation terminal/station (loading and unloading)

The following is the Land Use Intensity Control ratings that shall be observed in the POS-GEN Zone:

| **LAND USE** | **Maximum PLO** | **Maximum BHL (in meters)** |
|---|---|---|
| GENERAL PUBLIC OPEN SPACE | | |
| Parks & Plazas (POS-PP) | 0.25 | 10 |
| Playgrounds & Sports Field/Recreation (POS-PSR) | | |

PLO – Percentage of Land Occupancy
BHL – Building Height Limit

SEC. 19. Cemetery Zone (POS-CEM). The POS-CEM Zone shall be used primarily for burial and related activities. Enumerated below are the allowable uses:

1. All uses allowed in POS-PP
2. Cemetery, with customary accessory uses such as cemetery administration, service, and maintenance facilities
3. Crematorium
4. Place of religious worship
5. Mausoleum
6. Columbarium
7. Memorial shrines/monuments
8. Accessory uses:

a. parking structure
b. transportation terminal/station (loading and unloading)
c. health facility/clinic
d. fire/security station
e. utility installation for use of zone/lot occupants
f. public utility facility
g. general retail store and food serving establishment e.g. mini-mart, canteen, flower shop
h. funeral parlors, mortuaries

The following is the Land Use Intensity Control ratings that shall be observed in the POS-CEM Zone:

| LAND USE | Maximum BHL |
|---|---|
| Public Open Space<br>Cemetery POS-CEM | 10 |

BHL – Building Height Limit

*Exempted from the imposition of height regulations are monuments, obelisks, and other commemorative structures, as well as churches, utility and other structures not covered by the height regulations of the National Building Code and/or the Air Transportation Office.

SEC. 20. Utility Zone (UTL). – UTL Zone shall be used primarily for major transportation facilities, telecommunications, power, water and the like. Enumerated below are the allowed uses:

1. public utility facility
2. utility installation for use of zone/lot occupants
3. parking structure
4. transit station/terminal/depot, transportation infrastructure
5. park, playground, garden, aviary, zoological park and other nature center
6. Accessory uses:

   a. petrol filling kiosk, with no other retail/service activity, which shall be allowed only within parking areas/structures. This Accessory Use shall be subject to applicable government and other safety regulations.
   b. fire/security stations
   c. general retail store and food serving establishment e.g. convenience store, canteen

SEC. 21. Use Regulations in Water Zone (WTR). – WTR Zones are bodies of water within the City, which include esteros, rivers, streams, lakes and seas except those included in other zone classifications. Enumerated below are the allowable uses:

1. The utilization of the water resources for domestic and industrial use shall be allowed *PROVIDED*, it is in consonance with the development regulations of DENR, provisions of the Water Code, and the revised Forestry Code of the Philippines, as amended, and *PROVIDED FURTHER*, That it is subjected to an Environmental Impact Assessment (EIA) prior to the approval of its use.

2. Other uses such as recreation, fishing and related activities, floatage/transportation and mining (e.g. off-shore exploration) shall also be allowed *PROVIDED,* it is in consonance with the provisions of the Water Code, and the revised Forestry Code of the Philippines, as amended, and other relevant laws and regulations.

SEC. 22. Use Regulations in Histo-Cultural Heritage/Overlay Zone (O-HCH). An O-HCH Zone shall be used primarily for areas containing registered historical/cultural heritage resources that deserve special consideration for protection and conservation due to their special character, architectural value or aesthetic interest wherein they contribute to the City's collective understanding of its historical development and cultural heritage. Enumerated below are the allowable uses:

1. All uses allowed in all zones where it is located

SEC. 23. Use Regulations in Planned Unit Development / Overlay Zone (O-PUD) O-PUD Zones are identified specific sites in the City of Manila wherein the project site is comprehensively planned as an entity via unitary site plan which permits flexibility in planning/design, building siting, complementarily of building types and land uses, usable open spaces and the preservation of significant natural land features, pursuant to regulations specified for each particular PUD. Enumerated below are identified PUD:

1. Harbour Centre
2. Vitas
3. Tondo Foreshore Area
4. Baseco
5. Chinatown
6. Pandacan Oil Depot Area
7. University Clusters 1 to 3
8. Malate-Ermita
9. Old Bilibid Area
10. Quiapo – Sta. Cruz
11. San Lazaro Estate
12. Punta, Sta. Ana
13. Intramuros
14. Geronimo Manotoc – Sunog Apog

Enumerated below are the allowable uses:
1. all uses allowed in all zones where it is located
2. the LUIC under which zones are located shall, in all instances be complied with
3. the validity of the prescribed LUIC shall only be superceded by the development controls and regulations specified for each PUD as provided for by the masterplan of respective PUDs

SEC. 24. Use Regulations in Buffer Overlay Zone (O-BUF) – O-BUF Zones are yards, parks or open spaces intended to separate incompatible elements or uses to control pollution/nuisance and for identifying and defining development areas or zones where no permanent structures are allowed. Enumerated below are the allowable uses:

1. all uses allowed in POS-GEN
2. road
3. Accessory uses:

    a. fire/security station
    b. place of religious worship/use
    c. multi-purpose hall/room
    d. health facilities/clinic/day care center
    e. utility installation for use of zone/lot occupants
    f. exhibit area, art gallery
    g. transportation terminal/station

SEC. 25. City Properties Located Outside Manila. – Any City property located outside the City of Manila shall be classified based on its present and actual use.

## ARTICLE VI
## GENERAL LAND USE INTENSITY CONTROL

SEC. 26. Development Density. Permitted density shall be based on the zones' capacity to support development.

A. Residential Zone

High Density Residential/Mixed Use Zone (R3/MXD) – In R3/MXD Zone, allowed density is sixty-six (66) or more dwelling units per hectare.

B. All Other Zones

There is no fixed maximum density but should be based in the planned absolute level of density that is intended for each concerned zone based on the comprehensive land use plan.

SEC. 27. Height Regulations. – Building height must conform to the height restrictions and requirements of the Air Transportation Office (ATO), as well as the requirements of the National Building Code, the Structural Code, as well as all laws, ordinances, design standards, rules and regulations related to land development and building construction and the various safety codes.

A. Public Open Space Zone
In Public Open Space Zone, no building or structure shall be higher than ten (10) meters above the highest natural grade line and provided it conforms with the zone's prescribed LUIC.

B. All Other Zones
There is no fixed building Height limit except those prescribed by the Air Transportation Office (ATO) and other government regulations. Within these zones, building heights shall be based on the prescribed FLOOR Area Ratio (FAR).

SEC. 28. Area Regulations. – Area regulation in all zones shall conform with the minimum requirement of the existing codes such as:

a. P.D. 957 – the "Subdivision and Condominium Buyers' Protective Law" and its revised implementing rules and regulations

b. B.P. 220 – "Promulgation of Different Levels of Standards and Technical Requirements for Economic and Socialized Housing Projects" and its revised implementing rules and regulations

c. P.D. 1096 – National Building Code and its implementing rules and regulations

d. Fire Code; Sanitation Code; Plumbing Code; Structural Code

e. E.O. 648 – Reorganizing the Human Settlement's Regulatory Commission

f. Other relevant guidelines promulgated by the national agencies concerned

SEC. 29. Additional FAR Provisions. – Additional FAR beyond the prescribed allowable maximum FAR can be availed through the following development modes subject to the requirements of the IRR of this Ordinance:

29.1. Transit-Oriented Developments (TOD) – in all commercial zones (C-2/MXD, C-3/MXD), a building or a structure that is within four hundred (400) meters walking distance from an existing LRT or commuter rail station will be allowed to build three (3) FAR higher than the maximum FAR specified in this Zoning Ordinance, *PROVIDED*, That the building owner/s or developer/s should build and maintain, at his cost, a direct, elevated as to being in the same level as the terminal, well-ventilated, sheltered pedestrian link from his building to the immediate structure of the transit station/terminal building as approved by the Building Official and in consultation with concerned transit authorities, this link must be of sufficient dimension to accommodate public pedestrian volumes and must be kept open, safe, and well-lighted for the use of the general public at least during a period that extends before and after regular working hours.

As for all commercial zones (C-2/MXD, C-3/MXD), with a 400 meter distance but less than eight hundred (800) meters from the LRT or commuter rail station, these areas will be allowed to build one and a half (1.5) FAR higher than the maximum FAR specified in this Zoning Ordinance, *PROVIDED*, That these developments should be built and maintained by the owner/s or developer/s, at his cost, a sheltered pedestrian link from his structure connecting to those other structures within 400-meter distance T.O.D. pedestrian link towards the specified transport terminal.

29.2. Transfer of Development Rights (TDR) for Citywide Applicability – in the citywide applicability of the Transfer of Developments Rights, development space (expressed in terms of FAR) can be transferred from one lot (herein referred as “Transfer Lot”) to another lot (herein referred as “Development Lot”), *PROVIDED*, That:

a. The Transfer Lot and Development Lot are adjacent to each other.
b. The sum of the FAR of the two lots after the transfer does not exceed the sum of the maximum allowable FAR of the two lots prior to the transfer.
c. The maximum FAR that can be received by a Development Lot is 25% of the original maximum FAR of the Development Lot.
d. The developer/owner of the Development Lot shall provide sufficient technical basis, acceptable to the CPDO/Zoning Officer and the Building Official, to show that the additional development space resulting from the transfer will not cause substantial congestion or inconvenience or disrupt access and delivery of services to adjacent properties and the vicinity.
e. FAR that has been transferred can only be re-transferred to its original lot.

The resulting increase in the total FAR of a Development Lot and the corresponding decrease in the total FAR of a Transfer Lot shall be annotated on the respective titles of the two lots within sixty (60) working days after the TDR has been approved by the Zoning Officer.

29.3. Floor Area Bonus Incentives – Floor Area Bonus Incentives shall be available to all developments within the City which would provide facilities and amenities which are of public benefit and deemed desirable by the CPDO and the City Council, Floor Area Bonus Incentives shall be available to all developments within the City. These incentives provide for an incremental increase in the prescribed allowable FAR of a development in exchange for the inclusion of one (1) or more of the public benefit features, such as:

a. canopy
b. elevated pedestrian walkways
c. interior arcade
d. passenger loading/unloading

e. plaza, open space or roof gardens
f. street arcade
g. street level landscaped public space
h. public art

(Please refer to IRR for the list of Public Benefit and Corresponding Bonus Incentives)

SEC. 30. Easement. – Pursuant to the provisions of the Water Code: the banks of rivers and streams and the shores of the seas and lakes throughout their entire length and within a zone of three (3) meters in urban areas; along their margins, are subject to easement of public use in the interest of recreation, navigation, floatage, fishing and salvage.

No person shall be allowed to stay in this zone longer than what is necessary for space or recreation, navigation, floatage, fishing or salvage or to build structures of any kind.

SEC. 31. Buffer Regulations. - A minimum buffer of three (3) meters shall be provided along the entire boundary length between two (2) or more conflicting zones allocating 1.5 meters from each side of the zone boundary, as needed or within the provisions of the IRR. Such buffer strip should be open and not encroached upon by any building or structure and should be part of the yard or open space.

SEC. 32. Specific Provisions in the National Building Code. - Specific provisions stipulated in the National Building Code (P.D.1096) as amended thereto relevant to traffic generators, advertising and business signs, erection of more than one principal structure, dwelling or rear lots, access yard requirements and dwelling groups, which are not in conflict with the provisions of the Zoning Ordinance, shall be observed.

SEC. 33. Building or Structure Use. - No building, structure or land shall hereafter be occupied or used and no building or structure or part thereof shall be erected, constructed or structurally altered except in conformity with the provisions of this Zoning Ordinance.

SEC. 34. Yard, Off-Street Parking Space. - No part of a road, off-street parking space, loading space, or other open space required of any building shall, for the purpose of complying with this Ordinance, be included as part of the yard, open space, off-street parking or loading space similarly required of any adjacent neighboring building. However, this shall not apply to building/s with common party walls or adjacent building lines, in which case, only the yard for the free or non-abutting sides will be required.

SEC. 35. Traffic Generators. - All traffic generating buildings and structures allowed in any of the districts must provide for adequate parking spaces for their employees, clients and visitors. Such shall, however, be subject to additional parking requirements as evaluated by the City Planning and Development Office (CPDO) based on Presidential Decree No. 1096.

SEC. 36. Advertisements/Business Signs/Billboards or Street Graphics. - Advertising, business signs and billboards to be displayed or put up for public view in any of the districts herein enumerated must comply with existing laws, rules and regulations. Further, they shall not be allowed along scenic areas of parks, recreation zones, and obstruct heritage buildings or structures of significant value to the people, as provided for in the IRR of this Ordinance.

SEC. 37. Erection of More Than One Principal Structure. - In any district where more than one structure may be permitted to be erected on a single lot, the yard and other requirements of this Ordinance shall be met for each structure as though it was to be erected on an individual lot.

SEC. 38. Dwelling on Rear Lots. - No building used or designed to be used as residential shall be allowed in any rear lot unless such lot has a right-of-way easement over a path of at least four (4) meters leading to a street. Two (2) or more buildings, however, may be allowed on a common path if the right-of-way easement is at least six (6) meters wide.

SEC. 39. Structures to Have Access. - Every building hereafter erected or moved shall have access to a public street or to a private street open to the public and all structures shall be located on lots so as to provide safe and convenient access for servicing fire protection units.

SEC. 40. Yard Requirements Along a District Boundary Line. - Lots abutting on a district boundary line shall conform to the yard requirements of a more restrictive district bounded by the line.

SEC. 41. Dwelling Group. - When it is impractical to apply the requirements of these Zoning Regulations to individual building unit in a residential compound, consisting of two or more buildings, a permit for the construction of such compound may be issued, *PROVIDED,* That the plan thereof conform to the following conditions:

a. That the buildings are to be used only for residential purposes and such uses are permitted in the district where the compound is located.
b. That the average lot area per family of dwelling unit in the compound, exclusive of the area used or to be used for streets or driveways, is not less than the lot area per family required in the districts.
c. That there is provided, within the tract on which the residential compound is to be located, an open space for playground purposes with an area equivalent to at least an aggregate area of five (5%)percent of the required lot area per family, but in no case less than one hundred square meters; *PROVIDED,* That where the residential compound is intended for less than ten families, the setting aside of such area for playground purposes may be dispensed with; and *PROVIDED FURTHER*, That an open space may be used as part of the yard requirements for the compound; and
d. That there is provided within the tract on which the residential compound is to be erected or immediately adjacent thereto, an adequate private garage or off-street parking area, depending on the needs of the residents and their visitors.

SEC. 42. Pollution Control. - For effective pollution control, all zoning permit (locational clearance) granted for all development/activities must be subject to the condition of compliance with the Department of Environment and Natural Resources-Environmental Impact Statement System (DENR-EIS System-ECC Requirements) rules and regulations.

SEC. 43. Petition to Homeowner's Association or Barangay. - Where a person plans to establish a certain use/activity which will necessarily affect the character of a residential zone in terms of traffic to be generated and/or opening the area to outsiders which may result in loss of privacy of its residents, the prior social acceptability of the majority of the household heads of the homeowner's association or in its absence, the barangay, most especially the persons immediately adjacent to the proposed site, will have to be secured as one of the preliminary criteria for the approval of the zoning permit (locational clearance) and building permit.

## ARTICLE VII
## PERFORMANCE STANDARDS

All land uses, developments or constructions shall conform to the noise, vibration, smoke, dust, dirt and fly ash, odors and gases, glare and heat, industrial wastes, sewage disposal, storm, drainage, pollution control, and other similar environmental standards of the National Building Code, The Clean Air Act, and other applicable laws, rules and regulations.

SEC. 44. Buffer Yards. - Aside from providing light and ventilation, buffers can mitigate adverse impacts and nuisances between two adjacent developments. Whenever necessary, buffers shall be required to extend and/or provided with planting materials in order to ameliorate said negative conditions such as, but not limited to, noise, odor, unsightly buildings or danger from fires and explosions. Building setbacks shall be considered as buffer yards. A buffer may also contain barrier, such as a fence, where such additional screening is necessary to achieve the desired level of buffering between various activities.

1. Buffers Between Adjoining Properties. Between two different developments, e.g. residential and commercial, the more intense the land use shall provide the proper buffer design and materials. If a development shall occur beside a vacant lot, the owners of the properties in consideration may submit a contractual agreement whereby the required buffer for the first area to develop shall be reduced or waived. If additional buffer will be required at the time the vacant lot develops, it shall be provided by the latter development.

2. Buffers on Simultaneous Developments. The more intense use shall provide the necessary buffer in cases when two developments occur simultaneously.

3. Location of Buffers. The building setbacks shall serve as buffer locations, at the outer perimeter of a lot or parcel. In no case shall buffers occupy public or private street right-of-way.

4. Types of Buffers. Landscaped buffers with suitable foliage are encouraged. On developments where it is not be possible to put a landscaped buffers (such as narrow lots), the developer may put up a fence *PROVIDED*, That the fencing material is compatible with the design of the building as long as the wall looks visually pleasing.

5. Land Use in Buffer Areas. Buffers are part of yards and open spaces and in no case shall buildings encroach upon it. It may, however, be used for passive recreation such as gardening, pedestrian trails, etc.

6. Buffers in Industrial Establishments. A planted buffer strip of not less than three (3) meters wide or as the case may need is required along the periphery of industrial areas and buildings.

SEC. 45. Environmental Conservation and Protection Standards. - It is the intent of the City to protect its natural resources. In order to achieve this objective, all development shall comply with the following regulations:

1. Views shall be preserved for public enjoyment especially in sites with high scenic quality by closely considering building orientation, height, bulk, fencing and landscaping.

2. The utilization of the water resources in Manila shall be allowed provided it is in consonance with the development regulations of the DENR, provisions of the Water Code, the Revised Forestry Code of the Philippines, as amended, and whenever necessary, be subjected to an Environmental Impact Assessment (EIA).

3. Land use activities shall not cause the alteration of natural drainage patterns or change the velocities, volumes, physical, chemical, and biological characteristics of storm water and watercourses.

4. All developments shall limit the rate of storm water run-off so that the rate of run-off generated is no more than that of the site in its natural condition.

5. All developments shall undertake the protection of rivers and esteros from sedimentation and erosion damage.

6. The internal drainage systems of developments shall be so designed as not to increase turbidity, sediment yield, or cause the discharge of any harmful substances that will degrade the quality of the water. Water quality shall be maintained according to DENR DAO No. 34 – Revised Water Usage and Classification/Ambient Water Quality Criteria.

7. City and industrial wastewater effluents shall not discharge into surface and groundwater unless it is scientifically proven that such discharges will not cause the deterioration of the water quality. Effluents shall be maintained according to DENR DAO No. 35 – 91 – Establishing Effluent Quality Standards for Class “C” Inland Waters;

8. Floodplains shall not be altered, filled and/or built upon without proper drainage design and without proper consideration of possible inundation effects on nearby properties.

9. Facilities and operations that cause the emission of dust, dirt, fly ash, smoke or any other air polluting material that may have deleterious effects on health or cause the impairment of visibility are not permitted. Air quality at the point of emission shall be maintained at specified levels according to DAO No. 14 –Clean Air Act.

10. Mature trees or those equal to or greater than twelve (12) inches calliper measured 14 inches above the ground shall not be cleared or cut, unless permitted or is done in accordance with the provisions of the DENR.

SEC. 46. Network of Green and Open Spaces. - Aside from complying with the open space requirements of PD 957, BP 220 and other related issuances, the following shall apply:

1. All residential, commercial, industrial and mixed-use subdivisions are required to provide tree-planted strips along its internal roads having spacing of not more than ten (10) meters.

2. Similar development with total contiguous land areas greater than ten (10) hectares are required to provide, in addition to the above, landscaped forest parks of not less than Five Hundred Square Meters (500 sq.m.) for the use of the occupants and/or the general public.

3. Residential compounds, regardless of total lot area, shall provide an open space for playground purposes with an area equivalent to at least five percent (5%) of the required lot area per family. Where the residential compound is intended for less than ten (10) families, the setting aside of such area for playground purposes may be dispensed with, *PROVIDED,* That an open space may be used as part of the yard requirement for the compound.

* Note: All designated open spaces shall not be converted to other uses.

SEC. 47. Historical Preservation and Conservation Standards. - Historic sites and facilities shall be conserved and preserved. These shall, to the extent possible, be made accessible for the educational and cultural enrichment of the general public.

The following shall guide the development of historic sites and facilities:

1. Sites with historic buildings or places shall be developed to conserve and enhance their heritage values.

2. Historic sites and facilities shall be adaptively re-used.

3. Any person who proposes to add, to alter, or partially demolish a designated heritage property will require the approval of the City Planning and Development Office (CPDO) and shall be required to prepare a heritage impact statement that will demonstrate to the satisfaction of CPDO that the proposal will not adversely impact the heritage significance of the property and shall submit plans for review by the CPDO in coordination with the National Historical Institute (NHI).

4. Any proposed alteration and/or re-use of designated heritage properties shall be evaluated based on criteria established by the heritage significance of the particular property or site.

5. Where an owner of a heritage property applies for approval to demolish a designated heritage property or properties, the owner shall be required to provide evidence to satisfaction that demonstrates that rehabilitation and re-use of the property is not viable.

6. Any designated heritage property which is to be demolished or significantly altered, shall be thoroughly documented for archival purposes with a history, photographic records, and measured drawings, in accordance with accepted heritage recording guidelines, prior to demolition or alteration.

7. Residential and commercial infill in heritage areas will be sensitive to the existing scale and pattern of those areas, which maintains the existing landscape and streetscape qualities of those areas, and which does not result in the loss of any heritage resources.

8. Development plans shall ensure that parking facilities (surface lots, residential garages, stand-alone parking garages and parking components as parts of larger developments) are compatibly integrated into heritage areas, and/or are compatible with adjacent heritage resources.

9. Local utility companies (hydro, gas, telephone, cable) shall be required to place metering equipment, transformer boxes, power lines, conduit, equipment boxes, piping, wireless telecommunication towers and other utility equipment and devices in locations which do not detract from the visual character of heritage resources, and which do not have a negative impact on its architectural integrity.

10. Design review approval shall be secured from the CPDO for any alteration of the heritage property to ensure that design guidelines and standards are met and shall promote preservation and conservation of the heritage property.

SEC. 48. Site Performance Standards. - The City considers it in the public interest that all projects are designed and developed in a safe, efficient and aesthetically pleasing manner. Site development shall consider the environmental character and limitations of the site and its adjacent properties. All project elements shall be in complete harmony according to good design principles and the subsequent development must be visually pleasing as well as efficiently functioning especially in relation to the adjacent properties and bordering streets.

The design, construction, operation and maintenance of every facility shall be in harmony with the existing and intended character of its neighborhood. It shall not change the essential character of the said area but will be a substantial improvement to the value of the properties in the neighborhood in particular and the community in general.

Furthermore, designs should consider the following:

1. Sites, buildings and facilities shall be designed and developed with regard to safety, efficiency and high standards of design. The natural environmental character of the site and its adjacent properties shall be considered in the site development of each building and facility.

2. The height and bulk of buildings and structures shall be so designed that it does not impair the entry of light and ventilation, cause the loss of privacy and/or create nuisances, hazards or inconveniences to adjacent developments.

3. Abutments to adjacent properties shall not be allowed without the neighbor's prior written consent which shall be required by the City Planning and Development Office (CPDO) prior to the granting of a Zoning Permit (Locational Clearance).

4. The capacity of parking areas/lots shall be per the minimum requirements of the National Building Code. These shall be located, developed and landscaped in order to enhance the aesthetic quality of the facility. In no case, shall parking areas/lots encroach into street rights-of-way and shall follow the Traffic Code as set by the City.

5. Developments that attract a significant volume of public modes of transportation, such as tricycles, jeepneys, buses, etc., shall provide on-site parking for the same. These shall also provide vehicular loading and unloading bays so as street traffic flow will not be impeded.

6. Buffers, silencers, mufflers, enclosures and other noise-absorbing materials shall be provided to all noise and vibration-producing machinery. Noise levels shall be maintained according to levels specified in DENR DAO No. 30 – Abatement of Noise and Other Forms of Nuisance as Defined by Law.

7. Glare and heat from any operation or activity shall not be radiated, seen or felt from any point beyond the limits of the property.

8. No large commercial signage and/or pylon, which will be detrimental to the skyline, shall be allowed.

9. Design guidelines, deeds of restriction, property management plans and other regulatory tools that will ensure high quality developments shall be required from developers of commercial subdivisions and condominiums. These shall be submitted to the City Planning and Development Office (CPDO) for review and approval.

SEC. 49. Infrastructure Capacities. - All developments shall not cause excessive requirements at public cost for public facilities and services and shall not be detrimental to the economic welfare of the community. All developments shall exhibit that their requirements for public infrastructures (such as roads, water supply and the like) are within the capacities of the system/s serving them.

SEC. 50. Traffic Impact Study. - Major, high intensity facilities such as commercial/residential buildings shopping centers, schools, universities, industrial estates and warehouse shall be required to submit Traffic Impact Study (TIS)/Traffic Impact Assessment (TIA) and Traffic Management Plan (TMP) which shall form part of the requirements for the Zoning Permit (Locational Clearance). Other traffic generating developments, as determined by the City Planning & Development Officer, shall be required to submit the same. Enumerated below are the development projects which required to submit TIS/TIA and TMP:

1. residential developments in excess of 200 units
2. business developments with Gross Floor Area (GFA) in excess of 5,000 sq.m.
3. warehousing with a GFA of 10,000 sq.m.
4. retail developments with GFA in excess of 1,000 sq.m.
5. developments with a combined generation and attraction (vehicles or pedestrians) greater than 100 in the highest hour
6. where more than 100 off-street parking spaces are provided

## ARTICLE VIII
## SUPPLEMENTARY REGULATIONS

SEC. 51. Innovative Techniques or Designs.- When it is impractical to apply the requirements of these Zoning Regulations to certain developments, the proponent may apply for a permit with the City Planning & Development Office (CPDO) on grounds of innovative development techniques, *PROVIDED*, That the following conditions are complied with:

a. The proposed land use will not alter the essential character of the zone, especially its population density, number of dwelling units per hectare, and the dominant land use of the zone.

b. Both preliminary and final development plans must be submitted to City Planning & Development Office (CPDO) for approval.

c. The preliminary plan must generally set forth any existing or proposed arrangements of lots, streets, access points, buffer strips, rail, water, highway or other transportation arrangements and the relationship of the tract of the land involved to surrounding properties.

d. The final plan must, in addition to the above-cited requirements, describe the noise, smoke, odor, vibration, dust, dirt, obnoxious gases, glare and heat, fire hazards, industrial wastes and traffic which may be produced by the development.

e. The area subject to application is a consolidated parcel of land of at least two (2) hectares.

f. In cases of pollutive/hazardous or high category of industries they shall not be allowed in a residential area.

SEC. 52. Special Use Permits. - A special use permit shall be required for each of the following uses, subject to such terms and conditions as hereunder prescribed:

a. Transfer Stations

b. Materials Recovery Facilities (MRF)

1. Adequate fencing shall be put up to prevent undue scattering of wastes.

2. Eradication of rats and spraying of flies and the general maintenance of the dumping site shall be the sole responsibility of the proponent.

3. RA 9003 (Ecological Solid Waste Management Act of 2000) provisions shall at all times be complied with.

4. Other sanitary requirements of the City and the Department of Health (DOH) shall be complied with.

c. Radio Transmitting Stations/Telecommunication Towers

1. Radio Transmitting Stations and Telecommunication Towers shall be located within transport and utilities zones.

2. The sound maintenance of such station shall be the exclusive responsibility of the proponent and/or persons operating them.

3. Where the public welfare demands, however, radio transmitting stations /telecommunication towers may be located in some residential zones provided the preceding condition is complied strictly, and no interference with or damage to local electrical appliances or other property will likely result.

d. Private Heliports

1. Heliports may be allowed along commercial, industrial or institutional buildings provided safety requirements are complied with.

2. A written authority to operate shall be secured from Aeronautics Administration days before the intended date of operation, and a notice shall be posted or published in at least one of the daily newspapers to determine the proposed landing site.

e. Filling Stations

1. They must conform with the standards set by the Department of Energy (DOE).

2. Filling stations shall be located at least Two Hundred (200) meters from nearest schools, churches, hospitals and other similar structures/institutions.

3. They shall not constitute safety hazards in a community developed entirely for residential purposes.

4. Buffer strip and adequate fire fighting equipment must be provided.

f. Open Storage Except Hazardous/Pollutive Substances

1. Open storage except hazardous/pollutive substances shall be located within at least Two Hundred (200) meters from schools, churches, hospitals and other similar institutions.

2. Their sound maintenance shall be the sole responsibility of the proponent.

g. Abattoir/Slaughterhouse

1. Abattoir shall be located within reasonable existence from residential and commercial areas as determined by the City Planning & Development Office (CPDO); *PROVIDED,* That they shall not be located within the same premises as public markets.

2. A written authority to operate shall be secured from the local health and sanitation office by the applicant at least 90 days before the intended date of operation, and a notice shall be posted in the City Hall to determine public opposition, if any, to the proposed abattoir procedures must be adopted.

3. Proper waste disposal, odor control and other abatement.

4. The proponent shall obtain sworn statements from the owners of land immediately adjacent to the proposed site signifying their conformity or non-conformity to the proposed activity as one of the pre-requisites for the granting of a special use permit.

h. Funeral Parlors

1. Other sanitary requirements by the City and the Department of Health (DOH) shall be complied with.

2. Consent of at least ten (10) immediate and adjacent residents from the area concerned

SEC. 53. Environmental Compliance Certificate (ECC). - Notwithstanding the issuance of zoning permit (locational clearance) Section 63 of this Ordinance, no environmentally critical projects nor projects located in environmentally critical areas shall be commenced, developed or operated unless the requirements of ECC have been complied with.

SEC. 54. Subdivision Projects. - All owners and/or developers of subdivision projects shall in addition to securing a zoning permit (locational clearance) of this Ordinance be required to secure a development permit pursuant to provisions of PD 957 and its Implementing Rules and Regulations or BP 220 and its Implementing Rules and Regulations in the case of socialized housing projects in accordance with the procedures laid down in EO 71, Series of 1993.

## ARTICLE IX
## SPECIAL PROVISIONS

SEC. 55. Maintaining a linear park along Pasig River and other major waterways within the boundaries of the City of Manila. – In consonance with the provisions of Presidential Decree No. 295 (Water Code), an easement of ten (10) meters from existing shoreline, and banks of rivers shall be maintained as a linear park.

Should there be a change in the existing shoreline or banks of the rivers, the setback shall be construed as moving with the actual riverbanks or shorelines.

SEC. 56. Construction along or within the linear park. – In order to achieve the objectives of these provisions, any type of construction, alteration and physical development along the linear park must be coursed through the City Planning and Development Office and other proper authorities prior to the issuance of other necessary permits and/or clearance. Likewise, construction within the linear park shall only be those which are accessories/utilities for a park that will benefit the public.

SEC. 57. Maintenance of the Park. – The maintenance of the linear park shall be responsibility of the Barangay, Public Recreations Bureau (PRB) and the Parks Development Office (PDO).

SEC. 58. Roof Gardens. – In the absence of areas available for parks, recreation and open spaces, roof gardens are encouraged in accordance with the proposed network of open spaces. The same provision goes for buildings along the Light Railway Transit (LRT) lines and as provided for in the IRR of this Ordinance.

SEC. 59. Zoning the Sidewalk – In line with creating a pedestrianized city wherein connectivity is given importance, the sidewalk shall be zoned as provided for in the IRR of this Ordinance.

## ARTICLE X
## MITIGATING DEVICES

SEC. 60. Deviations. – Variances and exceptions from the provisions of this Ordinance may be allowed by the Sangguniang Panlungsod as per recommendation from the Manila Zoning Board of Adjustment and Appeals (MZBAA) through the Committee on Housing, Urban Development and Resettlements only when all the following terms and conditions are obtained/existing:

1. Variance – all proposed projects which do not conformed with the prescribed allowable Land Use Intensity Control (LUIC) in the zone.

    a. The property is unique and different from other properties in the adjacent locality and because of its uniqueness, the owner/s cannot obtain a reasonable return on the property.

This condition shall include at least three (3) of the following provisions:

- Conforming to the provisions of the Ordinance will cause undue hardship on the part of the owner or occupant of the property due to physical conditions of the property (topography, shape, etc.), which is not self created.

- The proposed variance is the minimum deviation necessary to permit reasonable use of the property.

- The variance will not alter the physical character of the district/zone where the property for which the variance sought is located, and will not substantially or permanently injure the use of the other properties in the same district or zone.

- That the variance will not weaken the general purpose of the Ordinance and will not adversely affect the public health, safety, and welfare.

- The variance will be in harmony with the spirit of this Ordinance.

2. Exceptions – all proposed business activities/projects which do not conformed with the prescribed allowable Land Uses in the zone.

    a. The exception shall not adversely affect the public health, safety and welfare and is in keeping with the general pattern of development in the community;

    b. The exception shall not adversely affect the appropriate use of other property/adjoining property in the same zone;

    c. The exception shall not alter the essential character of the district where the exception sought is located, and will be in harmony with the general purposes of this Zoning Ordinance;

    d. The exception shall not weaken the general purpose of the regulation established for specific district;

    e. The exception shall promote innovative techniques or create or protect a beneficial economic trend that would otherwise not be possible by providing livelihood, vital community services and facilities while at the same time posing no adverse effect on the zone/community;

    f. In cases of pollutive/hazardous or high category of industries they shall not be allowed in a residential area.

SEC. 61. Procedures for Granting Variances and Exceptions. - The procedure for the granting of exception and/or variance is as follows:

1. A written application for an exception for variance and exception shall be filed with the Manila Zoning Board of Adjustment and Appeals (MZBAA) through the CPDO citing the section of this Ordinance under which the same is sought and stating the ground/s thereof.

2. Upon filing of application, a visible project sign, (indicating the name and nature of the proposed project) shall be posted at the project site.

3. The CPDO shall conduct studies on the application and submit report within fifteen (15) working days to the MZBAA. The MZBAA shall then evaluate the report and make a recommendation and forward the application to the Sangguniang Panlungsod through the Committee on Housing, Urban Development and Resettlements.

4. A written affidavit of non-objection to the project/s by the owner/s of the properties adjacent to it shall be filed by the applicant with the MZBAA through the CPDO for variance and exception.

5. The Sangguniang Panlungsod shall take action upon receipt of the recommendation from MZBAA through the Committee on Housing, Urban Development and Resettlements.

SEC. 62. Approval of the City Council – Any deviation from any section or part of the original Ordinance shall be approved by the City Council.

## ARTICLE XI
## ADMINISTRATION AND ENFORCEMENT

SEC. 63. Zoning Permit (Locational Clearance). – All lot/land owners/land developers and business establishments shall secure a zoning permit (locational clearance) from the City Planning and Development Officer for all conforming uses and, in cases of variances and exceptions from the Sangguniang Panlungsod as per recommendation from the Manila Zoning Board of Adjustments and Appeals (MZBAA) through the Committee on Housing, Urban Development and Resettlements prior to conducting any business activity or construction on their property/land.

SEC. 64. Period of Zoning Permit's Approval/Disapproval. - The approval/disapproval of zoning permit shall not be withheld for more than thirty (30) days from receipt of application. Failure to act on the application within the period stated above shall be deemed as approved thereof.

SEC. 65. Validity of Zoning Permit. - The issuance of a Zoning Permit (Locational Clearance) shall not be construed as an approval or authorization to the permittee to disregard or violate any of the provisions of this Ordinance.

A Zoning Permit issued under the provisions of this Ordinance shall expire and become null and void if the building, work or business activity authorized therein is not commenced within a period of one year from the date of such permit, or if the building, work or business activity so authorized is suspended or abandoned at any time after it has been commenced, for a period of 120 days.

SEC. 66. Period of Processing for Zoning Permit:

a. Processing period. The processing, evaluation and issuance of Zoning Permit (Locational Clearance) by the City Planning & Development Office (CPDO) shall not exceed fifteen (15) working days.

b. Processing period on appeals. The processing period on appeals shall not exceed thirty (30) working days.

SEC. 67. Collection of Fees for Zoning Permit (Locational Clearance). – The rate of filing, processing and zoning fees for Zoning Permit are as follows:

**I. APPLICATION FEES/FILING FEES**

| | | |
|---|---|---|
| 1. Zoning Permit/Location Clearance | PhP | 150.00 |
| 2. Motion for Appeals | | 1,000.00 |
| 3. Petition/Request for Reclassification | | 1,500.00 |
| 4. Complaints, except those involving pauper Litigants w/c shall be free of charge | | 1,000.00 |

**II. ZONING FEES**

| | |
|---|---|
| A. RESIDENTIAL | |
| a. High Density Residential/Mixed Use (R-3/MXD) | PhP 3.00/sq.m. of TFA |
| B. COMMERCIAL | |
| a. Medium Density Commercial/Mixed Use (C-2/MXD) | 5.00/sq.m. of TFA |
| b. High Density Commercial/Mixed Use (C-3/MXD) | 5.00/sq.m. of TFA |
| c. Yards utilized for commercial purposes | 3.00/sq.m. of TLA |
| C. INDUSTRIAL | |
| a. Light Industrial (I-1) | 8.00/sq.m. of TFA |
| b. Yards utilized for industrial purposes | 5.00/sq.m. of TLA |
| D. UTILITY (UTL) | |
| a. Building Structure | 8.00/sq.m. of TFA |
| b. Yards utilized for utility purposes | 5.00/sq.m. of TLA |
| E. INSTITUTIONAL | |
| a. General Institutional (INS-G) | 4.00/sq.m. of TFA |
| b. University Cluster (INS-U) | 4.00/sq.m. of TFA |
| c. Yards utilized for institutional purposes | 1.00/sq.m. of TLA |
| F. GENERAL PUBLIC OPEN SPACE | |
| a. Parks & Plazas (POS-PP) | 5.00/sq.m. of TFA |
| b. Playgrounds & Sports Field/Recreation (POS-PSR) | 5.00/sq.m. of TFA |
| G. CEMETERY (POS-CEM) | |
| a. Allowed / permitted uses | 4.00/sq.m. of TFA |
| b. Accessory / ancillary uses | 4.00/sq.m. of TFA |
| H. ADVERTISEMENTS/BUSINESS SIGNBOARDS/ BILLBOARDS or STREET GRAPHICS | 4.00/sq.ft. of TSA |
| I. WATER ZONE (WZ) | 5.00/sq.m. of TFA |
| J. SPECIAL USE PERMIT | 10.00/sq.m. of TLA/ TFA/TBA |

* Except for the Telecommunications Towers and Radio Transmitting Stations PhP 1,000/unit

**III. CERTIFICATION**

| | | |
|---|---|---|
| 1. Residential | PhP | 100.00 |
| 2. Commercial & Industrial | | 400.00 |
| 3. Institutional | | 200.00 |

**IV. All Renovation** — 75% of the corresponding prescribed fee

**V. Processing Fee** — 25% of the corresponding zoning fee

**NOTE**: In case of approved appeals, the applicable zoning fee will be based on the higher zone classification.

**LEGEND**: TLA = total lot area
TBA = total base area
TFA = total floor area
TSA = total surface area

SEC. 68. Creation of Zoning Permit Operations Trust Fund. – There is hereby created a Zoning Permit Operations Trust Fund to be generated from all the application/filing fees. This Trust Fund is hereby created to augment supplies and materials in the conduct of the first two (2) years of zoning permit operations of CPDO. The City Accountant shall keep and maintain a special account and records thereto.

The Zoning Permit Operations Trust Fund shall be disbursed and may be used exclusively for the requirements of zoning permit operations including the purchase of office equipment, supplies and materials and other incidental expenses.

Any unused fund at the end of the second fiscal year's expenditures shall be reverted to the General Fund.

SEC. 69. Building Permit./Business Permit. – No building and business permit shall be issued by the Local Building Officer and Business Promotion and Development Officer respectively without a valid zoning permit (locational clearance) in accordance with this Ordinance.

SEC. 70. Non-User of Zoning Permit (Locational Clearance). – Upon issuance of a zoning permit (locational clearance), the grantee thereof shall have one (1) year within which to commence or undertake the use, activity or development covered by such clearance on his property. Non-use of said clearance within said period shall result in its automatic expiration, cancellation and the grantee shall not proceed with his project without applying for a new permit (clearance).

SEC. 71. Certificate of Non-Conformance. – Upon approval of this Ordinance, the CPDO shall immediately issue notice of non-conformance to all existing non-conforming uses. A certificate of Non-Conformance shall be applied for by the owner of the structure or operator of the activity involved within six (6) months upon issuance of notice of non-conformance. Failure on the part of the owner to register/apply for a Certificate of Non-Conformance shall be considered violation of the Zoning Ordinance and is subject to fine/penalties.

a) Procedure

1. A certificate of non-conformance shall be secured from the City Planning & Development Office (CPDO).

2. All requests for such certificate shall be made in writing, stating the reasons for non-conformance and accompanied by 1:10,000 vicinity map showing the exact location of the non-conformance use, lot or structure.

3. The request for such certificate shall be acted upon and transmitted to the appropriate parties within fifteen (15) days from the receipt of the request.

SEC. 72. Existing Non-Conforming Uses and Buildings. – The lawful use of any building, structure or land at the time of the adoption of this Ordinance may be continued, although such use does not conform with the provision of this Ordinance, provided:

1. In case the Non-Conforming use is not an industrial use;

a) No such non-conforming use shall be enlarged, increased or extended to occupy a greater area of land than that already occupied by the buildings or structures thereon at the time of the adoption of this Ordinance or moved in whole or in part, to any other portion of the lot or parcel of land where it existed at the time of the adoption of this Ordinance, unless such act shall decrease its non-conformity;

b) No building or structure devoted to a non-conforming use shall be repaired or altered to remedy the effects of ordinary wear and tear or remodeled unless the total aggregate value of all such repairs, alterations or remodeling shall not exceed twenty five percent (25%) of the assessed value of such building at the time of the adoption of this Zoning Ordinance, such aggregate value referring to all repairs undertaken throughout the entire remaining period of useful life of such building or structure, irrespective of whether they were undertaken at the time, successively or intermittently; provided repairs exceeding such value shall be allowed if they decrease the non-conformity of the use.

c) No building or structure devoted to a non-conforming use which has been damaged or destroyed, in whole or in part, by or as a result of fire, earthquake, typhoon, flood, lightning, war, riot, strike, or other forms of disorder shall be rebuilt or reconstructed, unless the total aggregate cost of all such rebuilding and reconstruction activities, shall not for the entire period of the remaining useful life of such building or structure exceed fifty percent (50%) of the assessed value thereof at the time of the adoption of the Ordinance*; PROVIDED,* That rebuilding or reconstruction which depress the non-conformity of the use shall be allowed.

d) No building or structure devoted to a non-conforming use which has not been used for such purpose for a total aggregate period of at least six (6) months since the adoption of this Zoning Ordinance, irrespective of whether the non-use thereof was continuous or intermittent, shall again be revived as a non-conforming use.

e) Non-conforming uses will be encouraged to undergo such repairs and alterations if the purpose is to convert it to a conforming use.

f) Non-conforming uses shall be subject to the same limitations and conditions imposed on permitted uses with reference to height, area and yard regulations; however, they shall be subject to stricter performance standards appropriated to this use.

g) That no such non-conforming use maybe moved to displace any conforming use and that should such structure be moved for any reason to whatever distance, it shall thereafter conform to the regulation of the zone in which it is moved or relocated.

2. In case the non-conforming use is an industrial use:

a) Repairs, alterations and improvements, whether brought about as a result of normal wear and tear or as a result of natural or man-made calamities shall be allowed as to enable the use to become more efficient and modernized*; PROVIDED,* That buildings or structures totally and/ or permanently destroyed/ damaged shall not be rebuilt;

b) No new industry, process or operation which is not necessary for the maximization of the capacity of the machinery presently installed at the time of this Ordinance shall be allowed;

c) The provisions of paragraphs (c) and (d) above, applicable to non-industrial, non-conforming uses, shall be applicable to industrial non-conforming uses.

d) The land use classified as non-conforming shall program the phase-out and relocation of the non-conforming use within seven (7) years from the date of effectivity of this Ordinance.

SEC. 73. Status of Approved Appeals from the MZBAA. – All approved appeals from the Sangguniang Panlungsod will be classified as non-conforming uses and all the provisions under Sec. 72 shall apply.

Decisions of the Sangguniang Panlungsod shall be final and executory.

SEC. 74. Permit for Innovative Techniques.

a) Initiation

Any person who wishes to apply for a permit for innovative techniques shall secure the appropriate form from the City Planning & Development Office (CPDO); *PROVIDED,* That the terms and conditions specified in this article are met.

b) Procedure for application

1. Together with a vicinity map drawn to the scale of 1:10,000 meters which shows the land use of the adjacent area, approximately a two (2) kilometer radius distance from the proposed site, the applicant shall submit the form containing the detailed description of the project.

2. The City Planning & Development Office (CPDO) shall evaluate the viability of the proposed project in relation to its environmental impact.

3. The City Planning & Development Office (CPDO) shall then decide and prescribe such terms and conditions under which the project may be allowed to locate and operate.

SEC. 75. Responsibility for Administration and Enforcement. – This Ordinance shall be enforced and administered by the City Mayor through the City Planning & Development Office (CPDO) in accordance with existing laws, rules and regulations. For effective and efficient implementation of this Ordinance, the CPDO is hereby authorized to reorganize its structure to address the additional mandates provided for in this Ordinance.

SEC. 76. Additional Powers and Functions of the City Planning & Development Office. – Pursuant to the provisions of this Ordinance and other existing laws, the City Planning & Development Office shall perform the following additional powers and functions:

I. Enforcement

A. Act on all applications for Zoning Permit (Locational Clearance) for all projects.

1. Issuance of Zoning Permit (Locational Clearance) for projects conforming with Zoning Regulations.

2. Conduct studies on the application of variance and exception and submit report to the MZBAA.

3. Issuance of Certificate of Non-Conformance for non-conforming projects lawfully existing at the time of the adoption of this Ordinance, including clearances for repairs/renovations on non-conforming uses consistent with the guidelines therefore.

B. Monitor on-going/existing projects within their respective jurisdictions and issue notices of violation and show cause order to owners, developers, or managers of projects that are violative of Zoning Ordinance.

C. Call and coordinate with the Philippine National Police (PNP) for enforcement of all orders and processes issued in the implementation of this Ordinance.

D. Coordinate with the City Legal Office for other legal actions/remedies relative to the foregoing.

II. Planning

A. Coordinate with the Regional Office of the Housing and Land Use Regulatory Board (HLURB) regarding proposed amendments to the Zoning Ordinance prior to adoption by the Sangguniang Panlungsod.

III. Review the Comprehensive Land Use Plan and Zoning Ordinance

A. The City Planning & Development Office (CPDO) shall review the Comprehensive Land Use Plan and Zoning Ordinance as the need arises based on the following situations:

1. Change in the local development plans
2. Introduction of projects of national significance
3. Petition for rezoning, and
4. Other reasons which are appropriate for consideration

B. Review the Zoning Ordinance for the following purposes:

1. Determine amendments or revisions necessary in the Zoning Ordinance because of changes that might have been introduced in the Comprehensive Land Use Plan.

2. Determine changes to be introduced in the Comprehensive Land Use Plan in the light of permits given, and exceptions and variances granted.

5. Identify provisions of the Ordinance difficult to enforce or are unworkable.

C. Recommend to the Sangguniang Panlungsod necessary legislative amendments and to the local planning and development staff the needed changes in the plan as a result of the review conducted.

D. Provide information to the HLURB that would be useful in the exercise of its functions.

E. Procedures for reviewing and updating the Zoning Ordinance:

The City Planning & Development Office (CPDO) shall meet every year to review the nature of developments and that have occurred during the preceding year and the corresponding effects of all exception, variances and special use permits granted on the areas where they have been allowed to locate and determine whether there is a need to make necessary changes in zoning classifications and/or zoning boundaries.

The City Planning & Development Office (CPDO) shall compile all exceptions, variances and special use permits approved for the one (1) year period shall be attached to the proposed and recommended amendments/changes in the Zoning Ordinance to be submitted to the Sangguniang Panlungsod.

SEC. 77. Action on Complaints and Opposition. – A verified complaint for any violations of any provision of the Zoning Ordinance or of any clearance or permits issued pursuant thereto shall be filed with the MZBAA.

However, oppositions to application for clearance, variance or exception shall be treated as a complaint and dealt with in accordance with the provision of this section.

SEC. 78. Functions and Responsibilities of the Manila Zoning Board of Adjustments and Appeals (MZBAA). – There is hereby created an MZBAA which shall perform the following functions and responsibilities:

A. Evaluate the report from the CPDO and submit recommendation to the Sangguniang Panlungsod through the Committee on Housing, Urban Development and Resettlements on appeals on grant or denial of zoning permit/locational clearance and development permit and act on the applications on the following nature:

1. variances
2. exceptions
3. non-conforming uses
4. complaints and opposition to applications

B. Facilitate the formulation of a master plan that would provide guidelines and direction for the development of overlay zones. It shall also assess and evaluate the proposed development plans for specific areas submitted by the stakeholders/proponents for approval.

The approved master plan shall established the LUIC regulations for the overlay zones thereby superceding the LUIC provided by this Ordinance.

SEC. 79. Composition of the Manila Zoning Board of Adjustments and Appeals (MZBAA). - The City Development Council-Executive Committee shall create a committee immediately after the approval of this Ordinance within six (6) months which shall act as the MZBAA composed of the following members:

1. City Mayor
2. Chairman, Committee on Housing, Urban Development and Resettlements of the SP
3. City Legal Officer
4. City Assessor
5. City Planning and Development Officer
6. City Engineer
7. One (1) representative from Non-Government Organizations (NGO) or One (1) representative from private sector
8. ABC (Liga ng mga Barangay) President
9. Majority Floor Leader
10. Minority Floor Leader

For purposes of policy coordination, said committee shall be attached to the City Planning and Development Office (CPDO).

SEC. 80. Procedure for Re-Zoning. – Any association or group of persons who wishes to prepare a re-zoning of a certain area, may file a petition with the Manila Zoning Board of Adjustments and Appeals (MZBAA) for initial evaluation.

The MZBAA shall then endorse the proposal together with its preliminary findings to the City Planning & Development Office (CPDO) for further evaluation. Whenever necessary, site inspection of the vicinity subject to rezoning shall be made, the CPDO shall then recommend for approval the re-zoning of the subject area to the City Council.

SEC. 81. Amendments to the Zoning Ordinance. – The proposed amendments to the Zoning Ordinance as reviewed and evaluated by the City Planning & Development Office (CPDO) shall be submitted to the City Council for approval of the majority of the Sangguniang Panlungsod members. The amendments shall be acceptable and eventually approved; *PROVIDED.* That there is sufficient evidence and justification for such proposal; *PROVIDED, FURTHER*, That such proposal is consistent with the development goals, planning objectives and strategies of the Manila Comprehensive Land Use Plan. Said amendments shall take effect immediately upon approval or after thirty (30) days from publication.

## ARTICLE XII
## FINAL PROVISIONS

SEC. 82. Penal Provisions. – Any person violating any provision of this Ordinance, shall, upon conviction, be punished by a fine of not more than Five Thousand Pesos (PhP5,000.00) or by imprisonment for not more than one (1) year or both such fine and imprisonment, at the discretion of the Court.

If the violation is committed by a firm, corporation, or partnership or any other juridical person, the manager, managing partner, director or any other person who actually participated in the violations should be held responsible criminally as provided by this section.

Furthermore, any person or government official found to have committed any violation of this Ordinance, directly or indirectly, who actually participated in the violations should be held responsible criminally as provided by this Ordinance.

SEC. 83. Separability Clauses. – 1) Should any section or provision of this Ordinance be declared by the Courts to be unconstitutional or invalid, such decision shall not affect the validity of the Ordinance as a whole or any part thereof other than the part so declared to be unconstitutional or invalid. Any portion thereof not affected by such declaration shall remain in full force and effect. 2) If any provision/s of this Ordinance or any portion thereof maybe found violative of any national laws, rules and regulations, local orders and the like, the same is hereof, declared invalid or null and void; unless modified and/or amended accordingly.

SEC. 84. Repealing Clause. – All ordinances, rules or regulations in conflict with the provisions of this Ordinance are hereby repealed; *PROVIDED*, That the rights that are vested upon the effectivity of this Ordinance shall not be impaired.

SEC. 85. Effectivity Clause. –This Ordinance shall take effect upon its approval.

SEC. 86. Non-Retroactivity Clause. – All laws relating to this Ordinance shall have no retroactive effect.

SEC. 87. Transitory Provisions. –

a.) No amendment, repeal shall take place within one (1) year upon approval of this Zoning Ordinance.

b.) The City Planning and Development Office (CPDO) shall review, study and update this Ordinance after three (3) years upon approval.

Enacted by the City Council of Manila at its regular session today, March 16, 2006

Approved by His Honor the Mayor, on June 16, 2006.

APPROVED:

JOSE L. ATIENZA, JR.
Mayor
City of Manila

MA. THERESA B. BONOAN-DAVID
Acting Presiding Officer
City Council, Manila

ATTESTED:

EMMANUEL R. SISON
Secretary to the Mayor

RODOLFO F. LAPID
Secretary to the City Council

CITY COUNCIL MANILA
CERTIFIED TRUE COPY
HECTOR PASCUAL

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